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| 3. | <p><b>Gomio vs. Kia America, Inc.</b></p> <p><b>25-01510570</b></p>                                                                       | <p><b>1. Motion to Compel Deposition (Oral or Written) X2</b><br/> <b>2. Order to Show Cause re: Venue</b></p> <p><b>HEARINGS VACATED. Case to be transferred to Riverside County.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 4. | <p><b>Valenzuela vs. Chacon</b></p> <p><b>25-01488136</b></p>                                                                             | <p><b>1. Motion for Leave to Intervene</b><br/> <b>2. Case Management Conference</b></p> <p>Proposed plaintiff-in-intervention Elite Claims Management’s motion for leave to intervene is GRANTED.</p> <p>“If an employee injured in the course of his or her employment by a third party commences an action against that third party, Labor Code section 3853 grants the employee’s employer [including the employer’s workers compensation insurer] an unconditional right to intervene in the action ‘at any time before trial on the facts.’ ” (<i>Mar v. Sakti Internat. Corp.</i> (1992) 9 Cal.App.4th 1780, 1782; <i>Garofalo v. Princess Cruises, Inc.</i> (2000) 85 Cal.App.4th 1060, 1069; Civ. Code, § 387, subd. (d)(1)(A) [“The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if ... [¶] ... [a] provision of law confers an unconditional right to intervene.”]; see Lab. Code, §§ 3211, 3850, subd. (b); <i>Fremont Comp. Ins. Co. v. Sierra Pine</i> (2004) 121 Cal.App.4th 389, 396; see also Mtn. P&amp;As at p. 3; Soleimanpour Decl. ¶¶ 2-6, Ex. A.)</p> <p>Intervenor Elite Claims Management shall separately file its proposed complaint-in-intervention (see Soleimanpour Decl. at Ex. A) <b>within 21 days</b>. The complaint-in-intervention must be filed as a separate document to ensure it is properly indexed in the record.</p> <p><b>The Case Management Conference is continued to February 25, 2027, at 9:30 a.m. in Department C12.</b></p> <p>Moving party shall give notice.</p> |
| 5. | <p><b>Rodriguez vs. The Estate of Douglas William Brown, by and through its administrator Shay Rightler</b></p> <p><b>25-01472342</b></p> | <p><b>1. Demurrer to Cross-Complaint</b><br/> <b>2. Case Management Conference</b></p> <p><b><u>Cross-Defendant Gabriela Rodriguez’ Demurrer to the Cross-Complaint</u></b></p> <p>Cross-Defendant Gabriela Rodriguez’ demurrer to the Cross-Complaint is OVERRULED.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |

### Uncertainty

Demurrers for uncertainty are disfavored. The Court will only sustain a demurrer for uncertainty if it is so poorly drafted that Defendant cannot reasonably respond. *Khoury v. Maly's of California Inc.* (1993) 14 Cal.App.4th 612, 616. Here, the Cross-Complaint is not so uncertain that Cross-Defendant is unable to intelligently respond. Any purported uncertainty in the allegations of the Cross-Complaint can be clarified through discovery.

### Misjoinder of Parties

Cross-Defendant argues that Cross-Complainant Brown is improperly included as a Cross-Complainant because he was not a party to the unlawful detainer. This argument is not persuasive. Plaintiff provides no legal authority or coherent reasoning as to why Mr. Brown is an improper party to this lawsuit.

### Failure to State a Claim

Cross-Defendant demurs to each cause of action alleged in the Cross-Complaint for failure to state facts sufficient to constitute a cause of action. To the Court, none of these arguments are persuasive.

### Trespass

To plead a cause of action for Trespass to Land, all that must be pleaded is “an unauthorized entry onto another’s land that disrupts the right to exclusive possession.” (*Civic Western Corp. v. Zila Industries, Inc.* (1977) 66 Cal.App.3d 1, 17-18.) The Cross-Complaint adequately pleads a cause of action for trespass. (See Cross-Complaint ¶¶ 9-12; 20-25.) The demurrer to this cause of action is **OVERRULED**.

### Damage to Real Property

Cross-Defendant argues that a demurrer is warranted to this cause of action because the subject property “was not taken care of and maintained since 2018.” This is not a ground for demurrer. Rather, Cross-Defendant attempts to contradict the facts alleged in the Cross-Complaint. Such questions of fact are not to be resolved on demurrer.

The Cross-Complaint sufficiently states a cause of action for damage to real property. The Cross-Complaint alleges that Cross-Defendant made alterations to the subject property without permission and that these alterations have impacted the value of the property. That is

sufficient for purposes of pleading. The demurrer is OVERRULED as to this cause of action.

### Fraud

To plead a legally sufficient cause of action for fraud, the pleader must allege (1) a misrepresentation; (2) the defendant's knowledge of the falsity of the misrepresentation; (3) intent to induce plaintiff's reliance on the misrepresentation; (4) actual reliance upon the misrepresentation; (5) causation; and (6) resulting damages. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2005) 35 Cal.4th 979, 990.)

The Cross-Complaint sufficiently alleges each of these elements. The Cross-Complaint alleges that Cross-Defendant made a misrepresentation by delivering a false 3-day notice to vacate the subject property to Cross-Complainant Brown, and that this was a false statement because Cross-Defendant had no authorization from the Estate to evict Mr. Brown. (Cross-Complaint ¶¶ 31-32.) Cross-Complainant is alleged to have been aware of the falsity of the 3-day notice. (Cross-Complaint ¶33.) Cross Defendant is alleged to have intended that Brown rely on the 3-day notice to vacate the property. (Cross-Complaint ¶34.) Cross-Complainant Brown is alleged to have reasonably relied upon the accuracy of the 3-day notice. (Cross-Complaint ¶35.) Cross-Complainants allege damages resulting from the misrepresentation. (Cross-Complaint ¶¶ 36-40.)

Cross-Defendant's disagreement with the factual accuracy of the allegations of the Cross-Complaint are not properly resolved in a demurrer. The demurrer is OVERRULED as to this cause of action.

### Intentional Infliction of Emotional Distress

"The elements of a cause of action for intentional infliction of emotional distress are: "(1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160.)

"Outrageous" conduct is defined as conduct that is "so extreme as to exceed all bounds of that usually tolerated in a civilized society." (*Id.*)

The conduct constituting extreme and outrageous conduct must be alleged “with great specificity” in order to withstand a demurrer. (*Id.* at 161.)

The Cross-Complaint sufficiently alleges the elements of this cause of action. The Cross-Complaint alleges Defendant purported to evict and lock brown out of the subject property under false pretenses. (Cross-Complaint ¶42.) The Cross-Complaint alleges this conduct was directed at Cross-Complainant Brown. (Cross-Complaint ¶43.) The Cross-Complaint alleges Cross-Complainant suffered extreme and/or severe emotional distress as a result of this conduct. (Cross-Complaint ¶¶44-45.) The Court finds that the Cross-Complaint sufficiently alleges facts indicating outrageous conduct. Accordingly, the demurrer is OVERRULED as to this cause of action.

#### Conversion

A cause of action for conversion requires allegations of “(1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property right; and (3) damages.” (*IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 650.)

The Cross-Complain sufficiently alleges both counts of conversion. Cross-Complainant alleges that Cross-Defendant caused personal property belonging to the Estate to be wrongfully disposed of by having the city of Santa Ana tow the vehicle. (Cross-Complaint ¶¶ 47-49.) Cross-Complainant alleges that Cross-Defendant wrongfully disposed of Cross-Complainant Brown’s personal property he had kept at the residence prior to Cross-Complainant’s occupation. (Cross-Complaint ¶¶ 54-56.) Cross-Defendant’s arguments in support of the demurrer appear to be nothing more than arguments that dispute the factual veracity of the allegations of the Cross-Complaint. Again, a demurrer is not an appropriate vehicle for resolving such disputes. The demurrer to the Conversion Causes of Action is OVERRULED.

**Cross-Defendant shall file an Answer to the Cross-Complaint within 30 days.**

**The Case Management Conference is CONTINUED to November 23, 2026, at 9:30 a.m. in Department C12.**

Cross-Complainant shall provide notice.